

the complaint is amended to substitute the true name of the defendant for the fictional name, the defendant is regarded as a party from the commencement of the suit." (*Balon v. Drost* (1993) 20 Cal.App.4th 483, 487; see Code Civ. Proc. § 583.210 [successor to former § 581a].)

Discussion

Plaintiff filed the Complaint on December 20, 2021, but did not substitute Chicago Title Company in until November 26, 2025 and did not serve it until December 18, 2025. The Doe amendment therefore appears to be untimely under Civil Procedure section 583.210.

Plaintiff argues that the three-year service rule should not apply because she was unaware of the facts giving rise to Chicago Title's liability until more than three years after the original complaint was filed. Plaintiff cites cases in which courts upheld the right of plaintiffs to pursue claims where the basis for liability of defendants was not discovered until after the occurrence of the facts giving rise to the claim against those defendants.

The Court does not find Plaintiff's argument persuasive. The discovery rule applies to the accrual of a cause of action for statute of limitations purposes, not to the mandatory service requirements of Code of Civil Procedure section 583.210. Code of Civil Procedure section 583.250(b) provides that "[t]he requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." The statutory exceptions to the three-year service requirement are set forth in Code of Civil Procedure section 583.240 and include periods when the defendant was not amenable to the process of the court, prosecution of the action was stayed, the validity of service was being litigated by the parties, or service was impossible, impracticable, or futile due to causes beyond the plaintiff's control. (Code Civ. Proc. § 583.240, subd (d).) Plaintiff's failure to discover the facts giving rise to Chicago Title's liability does not fall within any of these statutory exceptions. Indeed, Code of Civil Procedure section 583.240(d) specifically states that "[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision." (*Id.*; See *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 982 ["Cabandong explains that she did not know of Higgins's identity or involvement until after discovery . . . and that once she learned of his involvement, she promptly took affirmative action However, Cabandong's explanation is irrelevant, since for purposes of computing the three years in which the plaintiff must serve the defendant, '[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control . . . ' (§ 583.240, subd. (d))."]; *Republic Corp. v. Superior Court* (1984) 160 Cal.App.3d 1253, 1256 [under the predecessor to § 583.240(d), plaintiff's failure to discover true identity or facts showing liability of unserved Doe defendant insufficient excuse for delay in service of summons on real defendant].)

As Plaintiff failed to serve Chicago Title within three years of filing this action, and because Plaintiff failed to demonstrate a valid exception to the mandatory provisions of Code of Civil Procedure sections 583.210, subdivision (a) and 583.250, the motion to dismiss is granted. Plaintiff's twelfth cause of action for negligence against Chicago Title is dismissed without prejudice. (Code Civ. Proc. § 581(b)(4); *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 214-215.) Plaintiff is free to file a new action against Chicago Title. The Court expresses no opinion as to whether such action would be timely under the applicable statute of limitations.

13. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's demurrer to the twelfth cause of action for negligence is **off calendar** as moot in light of the Court's ruling on the motion to dismiss. Defendant shall prepare and serve the order and notice of entry of order.

14. 9:00 AM CASE NUMBER: N25-0867

CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC

***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**

FILED BY: LEWIS, REBECCA

TENTATIVE RULING:

Before the Court is Rebecca Lewis's Claim to Surplus Funds. The Court notes that there was a May 27, 2025 Claim by Robert I. Reed that appears never to have been resolved. While Lewis's claim does not have the Affidavit of Heirship by Alta Maccabee Reed, Reed's Claim does. On August 3, 2026, Susan Mechtel submitted a substantiated claim, but that claim was not previously set for today. The Court continues all three now-filed claims to September 3 so full documentation can be filed on behalf of all three claimants, and Mechtel's filing has the opportunity to be properly placed on calendar.

15. 9:00 AM CASE NUMBER: N25-2380

CASE NAME: SHYLER ACKLEY VS. CITY OF LAFAYETTE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF LAFAYETTE

TENTATIVE RULING:

Defendant, City of Lafayette, demurs to the petition filed by Shyler Ackley. The demurrer is **sustained without leave to amend**, as discussed below.

I. Background

Petitioner is an uphill neighbor of Nancy Pedneault, owner of "Lot 66." (Petition, ¶1.) Petitioner and twenty-one of his neighbors only access their properties by way of Sessions Road, a 50-foot wide easement that runs through the center of Lot 66. (*Id.* at ¶10.) This easement, and others, are reflected on the subdivision map that established their subdivision, M.S. 502-904. (*Id.* at ¶13.) For decades, because of these easements, Lot 66 was regarded as unbuildable. (*Id.* at ¶14.) In establishing the subdivision, Peter Jakovina opted to burden Lot 66 for the benefit of the other parcels. (*Id.* at ¶15.) Richard Holt, a Planning Commissioner who was on the Commission when the subdivision was approved, purchased Lot 66 from Jakovina while still sitting on the Commission. (*Id.* at ¶17.) Holt later sought a building permit, but was denied following considerable pushback from the uphill residents. (*Id.* at ¶18.)

In 2008, Holt was again unsuccessful in resubmitting an application for a building permit.